

Shakambhari Peetham v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 23 May 2016 · WRIT - C No. 22367 of 2016 · **Writ dismissed; transfer without genuine consent contrary to clause 4.44.**

HEADNOTE

Clause 4.44 of the U.P. Electricity Supply Code, 2005 permits transfer of a sanctioned connection only where the owner of the connection is dead or consents. Concurrent findings that the recorded consumer was alive and the purported consent was fake were not disturbed. The writ against the CGRF and Ombudsman orders was dismissed; those observations would not bind the pending civil suit on title.

FACTUAL SUMMARY

An electricity connection sanctioned in 2003 in the name of respondent No. 5, a Pujari of Shakambhari Peeth, was later transferred to the petitioner, Shakambhari Peetham. Respondent No. 5 complained that the transfer was without his consent. The Consumer Grievances Redressal Forum, Meerut allowed the complaint on 12 January 2016; the Electric Ombudsman dismissed the petitioner's appeal on 17 March 2016. The petitioner challenged both orders. Suit No. 775 of 1996 over title to the premises was already pending.

REUSABLE CONSTRUCTIONS

1. Under paragraph 4.44 of the U.P. Electricity Supply Code, 2005, a sanctioned electricity connection may be transferred only if the owner of the connection is dead or gives consent for transfer in another name. ¶ 1
2. A dispute over the name on an electricity connection cannot be used to establish title to the premises; observations of the CGRF or Electric Ombudsman do not bind a pending civil suit on that title. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

transfer of connection

HOLDING

Paragraph 4.44 confines transfer of a sanctioned electricity connection to two contingencies: death of the owner of the connection, or that person's consent to transfer in another name. Where the recorded consumer is alive and the document relied on as consent is found not to be genuine, the transfer is in contravention of clause 4.44. Concurrent CGRF and Ombudsman findings to that effect are findings of fact. The writ challenging those orders was dismissed as without merit. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — TITLE OR RIGHT OVER THE DISPUTED PREMISES

Left to pending Suit No. 775 of 1996; findings or observations of the CGRF and Ombudsman would not come in the way of the civil court. ¶ 1